Township of NIPISSING
"Life the way it should be" 1888

The Corporation of the Township of Nipissing
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REPORT TO COUNCIL

Date: December 6, 2022

From: Kris Croskery-Hodgins, Municipal Administrator

Re: Shared Service Agreement for CBO Services

BACKGROUND/OVERVIEW

In April 2007, the Township entered into a Shared Services Agreement for the services of a Chief Building Official with the Municipality of Callander. The original agreement provided for a 50/50 split of the service time with Callander and has been modified to reflect the actual requirements for services to 60% Callander and 40% Nipissing.

FINANCIAL IMPACT

Sharing this service has allowed the Township to Budget for only the services required, saving additional costs of having a full-time staff member in this position.

The Building Permit revenues are generated to cover the costs incurred for this service.

SUMMARY

This shared service is beneficial to both municipalities and has a successful history.

RECOMMENDATION:

That Council authorize the renewal of this shared service agreement.

Respectfully,

Kris Croskery-Hodgins, Municipal Administrator

SHARED CHIEF BUILDING OFFICIAL SERVICE AGREEMENT

("Agreement")

BETWEEN:

The Corporation of the Municipality of Callander
(Hereinafter referred to as "Callander")

AND:

The Corporation of the Township of Nipissing
(Hereinafter referred to as "Nipissing")

WHEREAS the *Building Code Act* and the regulations thereto require Municipality's to appoint a Chief Building Official,

AND WHEREAS the *Building Code Act* also requires Chief Building Officials and Inspectors to complete inspections of buildings under construction within a certain timeframe and at specific stages of construction,

AND WHEREAS the Municipality of Callander employs a Chief Building Official on a full-time basis,

AND WHEREAS the *Building Code Act* permits Municipalities to enter into agreement to obtain the expertise and resources required to meet the requirements of the *Building Code Act*,

AND WHEREAS the Township of Nipissing and Municipality of Callander wish to enter into an Agreement for the sharing of department officials, expertise and resources upon the terms and conditions set out in this Agreement, pursuant to Section 3 of the *Building Code Act*,

NOW THEREFORE in consideration of the terms, covenants, and provisions herein, and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties agree as follows:

1. TERM

   The term of this Agreement (the "Term") shall begin January 1, 2023 (the "commencement date") and shall continue to remain in effect for a five (5) year term ending on December 31, 2027, unless either party terminates this Agreement by providing the other party with written notice of termination ninety (90) days prior to the effective date of termination.

2. SERVICES

   2.1 The Township of Nipissing retains the Municipality of Callander to complete the Services as set out in Schedule "A", during the term in accordance with this Agreement on a 60/40 basis. 60% of time is spent in Callander and 40% of time is spent in Nipissing.

   2.2 For the purpose of this Agreement, the Chief Building Official remains a full-time employee of the Municipality of Callander. Callander's Human Resource Policy, as

amended, shall be used for all human resource purposes, including but not limited to assignment of vacation/sick time, accruing lieu time and disciplinary measures. The Chief Building Official is responsible for abiding to the policies passed by the Council of the Municipality of Callander. While working in Nipissing, the CBO shall be cognizant of the policies/procedures passed by the Township of Nipissing.

2.3 During the course of this Agreement, should the Human Resources Policies of Callander change, or should the Salary Grid for Callander employees be modified, this Agreement shall be adjusted in order to reflect these changes. Written notice shall be provided by the Senior Municipal Director of Callander to the Municipal Administrator for Nipissing.

2.4 Should there be any performance issues associated with the Chief Building Official, the Municipal Administrator for Nipissing shall report the information to the Senior Municipal Director of the Municipality of Callander for processing.

2.5 If there is a necessity for additional hours above and beyond the fourteen (14) hours assigned as per this Agreement to Nipissing, the Municipal Administrator via written notice to the Senior Municipal Administrator in Callander, may approve additional hours be worked and charged to the Township of Nipissing.

2.6 Vacation, lieu time, sick time or other requests that lead to an absence from the municipal office are approved by the Senior Municipal Director of the Municipality of Callander. The Senior Municipal Director, or designate, will provide as much notice as possible to the Municipal Administrator of any absences that affect the Township of Nipissing.

3. SUPPLIES AND PROFESSIONAL DEVELOPMENT

3.1 Nipissing shall share Professional Development costs on a 50/50 basis with respect to courses, meetings, and materials, which are attended to, or utilized by, the CBO for the mutual benefit of Callander and Nipissing, as determined by the Senior Municipal Director for Callander and the Municipal Administrator for Nipissing.

3.2 Nipissing shall be responsible for providing, at its own expense, those supplies, materials, and equipment required for the CBO to provide Services specific to Nipissing.

4. PAYMENT

4.1 Callander shall invoice Nipissing monthly for Services provided by the CBO.

4.2 The cost of the Services shall be 40% of the total cost to Callander for employing the CBO based on a 35-hour work week, factoring in vacation time, pension, benefits and overtime.

4.3 In addition to the payment described in 4.2, Nipissing shall pay the CBO's reasonable transportation costs for Services provided to Nipissing at the rate defined by Callander's Human Resources Policy, which is currently $0.61 per km and is subject to updates by Council.

4.4 Nipissing shall be exempt from Section 4.3 if Nipissing provides a vehicle for use by the CBO as they carry out their duties in Nipissing, pursuant to this Agreement.

4.5 Any other arrangements with respect to mileage, car allowances or the purchase or lease of a vehicle for use by the CBO in carrying out shared services shall be agreed upon separately by both Callander and Nipissing.

5. TERMINATION

It is understood and mutually agreed that this Agreement may be terminated upon not less than ninety (90) days prior written notice by either Party.

6. EXTENSION, MODIFICATION AND RENEWAL

6.1 This Agreement may be amended or modified from time to time, upon agreement by the Council of the Municipality of Callander and the Council of the Township of Nipissing.

6.2 This Agreement shall expire five (5) years from its commencement date, at which time a review of the Agreement shall be undertaken. A By-law shall be passed at the Council of each benefitting party to renew the Agreement, once a five-year review has taken place, and it is determined by both Parties that the continuation of this Agreement is in the best interest of both Municipalities.

7. INDEMNIFICATION AND INSURANCE

7.1 Indemnification:

Each party shall indemnify, defend, and save harmless the other party (including its elected officials, officers, directors, employees, agents, and representatives) from any and all claims, demands, costs (including legal costs on a substantial indemnity basis), penalties, fines, fees, royalties, damages (including indirect, special, remote, and consequential damages) and causes of action, including, without limitation, proprietary or personal injury (including death) that arise from, either directly or indirectly, or relate to, any act or omission of the other party, its directors, officers, employees, agents, affiliates, partners (general or limited), members, joint venturers, contractors, subconsultants, and other representatives, in connection with a party's rights and responsibilities pursuant to this Agreement, except to the extent that same was

caused by the negligence or misconduct of the other party. The rights to indemnity contained herein shall survive the early termination or expiry of this Agreement.

7.2 Clarification:

Notwithstanding the above, Nipissing shall indemnify, defend, and save harmless Callander (including its elected officials, officers, directors, employees, agents, and representatives) and the CBO from any and all claims, demands, costs (including legal costs on a substantial indemnity basis), penalties, fines, fees, royalties, damages (including indirect, special, remote, and consequential damages) and causes of action, including, without limitation, proprietary or personal injury (including death) that arise from, either directly or indirectly, or relate to, any act or omission of the CBO in performing his duties and Services on behalf of Nipissing, except to the extent that same was caused by the negligence or misconduct of the CBO. The rights to indemnity contained herein shall survive the early termination or expiry of this Agreement.

7.3 Insurance:

Prior to the execution of this Agreement, or in any event, prior to the provision of Services pursuant to this Agreement, Nipissing shall provide Callander with the proof of comprehensive general liability insurance with a minimum limit of two million ($2,000,000). The insurance will include "The Corporation of the Municipality of Callander" as an additional insured for the Services provided in this Agreement. Coverage should include, but not be limited to:

- Bodily and personal injury, including harassment and discrimination,
- professional liability and errors and omissions insurance in the amount of not less than one million ($1,000,000),
- property damage insurance against loss or damage by perils of "all risks" to the extent available and generally obtainable from time to time,
- products and completed operations,
- blanket contractual liability, and
- cross liability.

Coverage for liability arising out of an alleged breach of a statutory duty under applicable legislation will also be provided in the form of Errors and Omissions Liability coverage, subject to the same limit and cancellation clause noted above.

Nipissing shall provide Certificates of Insurance showing compliance with this provision before delivering any request for Services from one another. Such Certificate shall provide that the required insurance coverage will not be cancelled or altered without thirty (30) days advance written notice to the additional insured, unless otherwise required by law.

8. COMPLIANCE BY MUNICIPALITY

Under Section 7 of the *Building Code Act*, all Ontario Municipalities are required to establish a Code of Conduct. It is the responsibility of each party to ensure that an established Code of Conduct is in place in their respective areas of jurisdiction. The requirements of a Code of Conduct shall be spelled out in the Municipality's Building By-law and the Building By-law shall be in compliance with the *Building Code Act*.

9. DISPUTE RESOLUTION

9.1 Any disputes and controversies arising out of, or in any manner relating to, the Agreement shall be subject to the following dispute resolution procedure:

9.1.1 The dispute shall be documented in writing and referred to the Senior Municipal Director for Callander and Municipal Administrator for Nipissing for joint resolution.

9.1.2 If the dispute cannot be resolved within ten (10) working days according to 9.1.1 above, upon twenty (20) calendar days written notice of a party's desire to arbitrate such dispute or controversy, it shall be settled by arbitration by a designated Arbitrator skilled in matters of building code and other relevant legislation, authorized under the laws of Canada, and agreed to by both Parties. Such arbitration shall be subject to the *Arbitration Act, 1991, S.O. 1991, c.17*.

10. This Agreement shall replace and supersede any previous Shared Service Agreements.

11. This Agreement is subject to, and governed by, the laws of the Province of Ontario, and the laws of Canada applicable therein.

EXECUTED IN QUADRUPLICATE AND BINDING AS OF THE DATE OF EXECUTION BY BOTH PARTIES:

The Corporation of the Municipality of Callander	**The Corporation of the Township of Nipissing**
Per: _____	**Per:** _____
Mayor, Robb Noon	Mayor, Tom Piper
Per: _____	**Per:** _____
Clerk, Elaine Gunnell	Municipal Administrator, Kris Croskery-Hodgins

Schedule "A"

The Service

1. Fulfills the roles of the Chief Building Official, as described under the *Building Code Act*, including but not limited to:

    a. Review Plans, Drawings, Applications and Specifications to determine whether the proposed construction of the building complies with the *Building Code*.
    b. Issues Change of Use Permits, Building Permits, Plumbing Permits, Stop Work Orders, Orders, Occupancy Permits,
    c. Conducts inspection of the construction of all buildings at all phases of construction required under the *Building Code Act*, the *Building Code* and regulations thereunder, and issues inspection reports

2. To enforce the *Residential Tenancy Agreement* on behalf of the Township of Nipissing.

3. To ensure property inspections are conducted upon request or complaint, or otherwise required by law and documented in the associated property files accordingly.

4. To maintain compliance with the: Municipal Act, 2001, S.O. 2001, c.25 (as amended and as it exists from time to time); Building Code Act, 1992, S.O. 1992, c.23 (as amended and as it exists from time to time); Occupational Health and Safety Act, R.S.O. 1990, c.0.1 (as amended and as it exists from time to time); and all other applicable legislation, regulations, bylaws, policies and procedures for Callander and Nipissing respectively.

5. To assist the Fire Chief with interpretation of the *Building Code*, when required.

6. To attend Council meetings, when requested, and provide reports and recommendations associated with building and *Residential Tenancy Act* activity in Nipissing to Council, as required.

7. To provide quarterly reports to Nipissing respectively, which include, not are not limited to the following information:

    a. Active permits
    b. Problem areas of enforcement, and
    c. Recommendations for changes or improvements

8. To assist Nipissing with respect to the budgetary process as it pertains to the provision of Services.

9. To act professionally and in the best interest of the Municipality.

10. To maintain in a good standing a Class "G" Ontario Driver's License.